

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MAC INDUSTRIES INC. DBA MAC CONTAINER LINE,
Complainant

v.

COSCO SHIPPING LINES CO., LTD., COSCO SHIPPING LINES
(NORTH AMERICA) INC., AND COSCO SHIPPING LINES
(INDIA) PRIVATE, *Respondents*.

DOCKET NO. 25-29

Served: July 15, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

On June 12, 2026, Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) filed a motion for leave to file an amended complaint (“Motion”). On June 22, 2026, Respondents COSCO Shipping Lines Co., Ltd. (“COSCO”) and COSCO Shipping Lines (North America), Inc. (“CSLNA”), filed an opposition to the motion (“Opposition”). It appears that proposed new Respondent COSCO Shipping Lines (India) Private (“CIN”) has not been served. On June 26, 2026, MAC filed a reply in support of its motion (“Reply”).

On May 21, 2026, an order was issued granting COSCO’s motion to dismiss the original complaint and giving MAC the option to submit a motion for leave to file an amended complaint or face dismissal with prejudice of the proceeding (“Dismissal Order”). MAC now asserts that the “original complaint failed to satisfy applicable pleading requirements and did not clearly articulate the legal bases for MAC’s claims;” that “MAC’s proposed Amended Complaint addresses those deficiencies by refining the claims asserted and clarifying the legal and factual grounds for those claims under applicable standards;” and that “MAC has now engaged counsel, after proceeding *pro se*, and this is MAC’s first request to amend.” Motion at 2-3.

COSCO argues that the motion should be denied due to MAC’s failure to adhere to FMC rules to confer with opposing counsel before filing a non-dispositive motion and that the proposed amended complaint is “not limited to factual statements, or even fact-based conclusions.” Opposition at 3-5. COSCO further contends that CSLNA and CIN should be dismissed for lack of FMC jurisdiction as they are not common carriers or regulated entities. Opposition at 3-6. COSCO indicates that it intends to file a motion to dismiss if the motion for leave is granted.

MAC’s reply contends that there is no duty to confer under Commission Rule 70; Commission rules require a complaint to include “a recitation of the legal authority and

jurisdiction for institution of the proceeding, with specific designation of the statutory provisions alleged to have been violated;” and that “the Amended Complaint plausibly alleges that CSLNA and CIN acted directly in their own individual capacities without disclosing a principal.” Reply at 1-4 (quoting Commission Rule 62).

The Commission’s rules permit amendment at the discretion of the presiding officer. 46 C.F.R. § 502.66(a). While the rules do not state explicit criteria to guide the appropriate exercise of that discretion, 46 C.F.R. § 502.12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” The Commission routinely cites federal court cases applying Federal Rule 15 (Amended and Supplemental Pleadings) in deciding whether to permit amendment of a Shipping Act complaint. *See, e.g. Marine Transport Logistics, Inc. v. CMA CGM (America), LLC*, FMC Docket No. 22-23, 2022 WL 17592359, at *2 (ALJ Dec. 8, 2022); *Seafair USA LLC v. Sterling Container Line Ltd.*, FMC Docket No. 22-34, 2023 WL 4418617, at *1 (ALJ July 6, 2023). Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. After that period, an amended pleading is permitted with opposing party’s written consent or leave of court, which should be freely given when justice so requires. Fed. R. Civ. P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted).

The Dismissal Order permitted MAC to file a motion for leave to file an amended complaint. Failure to file such a motion would have resulted in dismissal with prejudice and the parties were specifically instructed that the motion for leave be submitted in accordance with Commission Rule 70, which does not include a requirement for consultation. Even if consultation was required, denying leave to amend thereby dismissing the proceeding would be an extreme and unwarranted sanction.

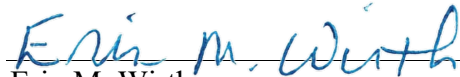
Commission Rule 62 specifically requires the content of the complaint to provide “legal authority” and while a “clear and concise factual statement” is required that does not mean that other information is improper. 46 C.F.R. § 502.62(a)(3). Moreover, the Dismissal Order specifically ordered MAC to review case law prior to filing an amended complaint. Respondents’ suggestion that MAC’s citation of authorities in the Amended Complaint is somehow improper is baseless.

COSCO contends that CSLNA and CIN must be dismissed as they were only agents and “MAC’s own pleadings describe CSLNA as COSCO’s ‘U.S. agent’ and CIN as COSCO’s agent.” Opposition at 5-6. MAC asserts that “the Amended Complaint plausibly alleges that CSLNA and CIN acted directly in their own individual capacities without disclosing a principal,” and MAC submits documents where it alleges that the principal was not disclosed. Reply at 3-4. At this point, CIN has not been served with the Amended Complaint and has not had an opportunity to respond to it. Even if CSLNA and/or CIN are ultimately dismissed, the case would proceed against COSCO.

The proposed Amended Complaint was drafted by counsel and is a significant improvement over the initial complaint that was dismissed. The Amended Complaint is timely and has been filed prior to discovery beginning. Leave is to be given freely and there does not appear to be futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments that would weigh against allowing the Amended Complaint.

Accordingly, the motion seeking leave to file the Amended Complaint is **GRANTED**. The Office of the Secretary is requested to serve the Amended Complaint on the Respondents, including on the new Respondent, COSCO Shipping Lines (India) Private. It is further requested that the caption be updated to reflect all parties.

The parties must submit a joint status report with proposed schedule within fifteen days of the service of the answer, consistent with the Initial Order issued in this case.


Erin M. Wirth
Chief Administrative Law Judge